DEVON CHIRAU
versus
THE STATE

HIGH COURT OF ZIMBABWE
MUZENDA & SIZIBA JJ
MUTARE, 13 & 19 May 2026

Criminal Appeal

Appellant in person
Mr *M. Musarurwa,* for the respondent

SIZIBA J:

1. After hearing submissions from the parties on 13 May 2026, we dismissed the appellant's appeal in its entirety. The appellant is aggrieved by the decision of the Rusape Magistrates Court wherein he was convicted of robbery in contravention of s 126(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9*:*23*]. On 11 March 2025, he was sentenced to 5 years imprisonment of which 1 year was suspended on condition of restitution of US$1 800 to the complainant on or before 30 June 2025.

2. The complainant in this case was subjected to terror during the night on 5 March 2022. He was asleep inside his truck which was parked by National Railways of Zimbabwe shades in Headlands. Four assailants suddenly pounced on him wielding machetes and knives and they forcibly took US$3 600 from him as well as a Berretta Pistol and two cellphones being an Itel and a Nokia. The assailants broke the window of his truck to access him. He told the trial court that the appellant who was the second accused in the court below is the one who was standing beside him holding a knife. He alleged that the appellant's accomplice one Seith Mandebvu being the first accused person threatened to kill him with a gun. He alleged that the appellant demanded his phone and he handed it to him. The first accused ransacked the truck. He said that there was light from the nearby shop which enabled him to identify the two assailants who got close to him. His ordeal lasted for about an hour. He claimed that he had managed to

identify his assailants. They also had a torch. He said that the appellant was wearing a bush jacket and that his accomplice the first accused was putting on a woolen jersey with boxes. He alleged that the appellant also searched the cockpit of his truck. The investigating officer testified that the appellant was implicated by the first accused who was found with the complainant's firearm at his arrest.

3. In the court bellow, the appellant denied that he had taken part in the commission of the offence. He attacked the credibility of the complainant in relation to the respective roles played by the four assailants and as to why the complainant had zeroed in on the two as to what they did. The complainant's explanation was that the appellant and the first accused are the ones who had had close contact with him as they even entered the truck. The appellant further contended that the detectives had shown the complainant his photographs after his arrest and hence his identification was just a dock identification.

4. The trial court was satisfied that the complainant had properly identified the appellant as one of the assailants. It based its conclusion on the complainant's testimony about his ordeal which lasted for about an hour. The court also noted that there was a source of light. It also took into account that the appellant was implicated by his own accomplice who was found with the complainant's firearm.

5. The appellant's grounds of appeal were not clear and concise. We decided to condone him on this aspect in the interests of finality of the case as a self-actor after his previous purported appeals had been struck off the roll for lack of compliance with the requirements of the law. In his first ground of appeal, the appellant challenges the complainant's testimony alleging that he was a single witness who was shown his photographs by the detectives. In his second ground of appeal, the appellant contends that he was subjected to dock identification by the complainant when no identification parade had been conducted. The third ground of appeal also laments that no prior description of the appellant was given by the complainant. The fourth ground of appeal attacks the mental capacity of the first accused person who had implicated him.

6. The state contended that the appellant's conviction was unassailable basing on the observations made by the court *a quo* which was satisfied with the complainant's credibility. The State also argued that no error of law was committed by the court *a quo.*

7. It is not accurate to say that the appellant was convicted on the basis of a single witness. More than one witness testified. In any event, a single witness's testimony may still be accepted by a court of law if it is competent and credible unless it can be shown to be vitiated by a defined principle of law. Section 269 of the Criminal Procedure and Evidence Act [*Chapter 9:07*] confirms this position. Although there appears to be indications that the complainant was shown the appellant's photographs by the detectives at some stage after his arrest, that is not where the evidence in this case entirely rested. There were observations made by the complainant at the crime scene about the manner in which the offence was perpetrated and the description of the two assailants who closely interacted with the complainant. The fact that no identification parade was conducted adds nothing to the appellant's case. Above that, the circumstances in which the appellant was arrested after being implicated by his accomplice who was in possession of complainant's firearm are damning to the appellant. The court *a quo* properly rejected the appellant's assertion that his accomplice who implicated him was suffering from insanity. He did not put forward any evidence to prove such allegation of his accomplice's insanity. All these are matters of factual findings resting upon the credibility of witnesses which are in the province of a trial court. The position is trite that an appellate court should be slow to upset such findings without the benefit of having observed the witnesses who testified in the case. See *Khumalo* v *The State* HB 28-24, *Mupande and Others* v *The State* SC 58-22 at p 6 to 7 of the cyclostyled.

8. The appellant's attack on the sentence is that it was too severe taking into account that he had spent 35 months in custody awaiting trial. He also contended that he was a first offender who was asthmatic and relying on medication. We found no merit in these contentions. During the sentencing inquiry, the trial court accepted and rightly so, the State's assertion that the appellant's 35 months pre-trial incarceration was occasioned

by the fact that he was being tried in other cases in Harare after which he was transferred to Rusape for this matter. It was not therefore a wrong exercise of discretion for the trial court to refuse to discount the length of his sentence on the basis of pre-trial incarceration. In addition, even if the appellant was a first offender, he still deserved the sentence that was imposed on him. The court *a quo* properly assessed his sentence and alluded to the case of *S* v *Madondo* 1989 (1) ZLR 300 (HC) where this court implored on magistrates to treat robbery offences seriously by imposing custodial sentences commencing from the minimum of 5 years imprisonment. The sentence is accordingly in tandem with the seriousness of the crime of robbery which is characterized by terror and shock to the victim while on the other hand the perpetrator will be acting in a barbaric, cruel and greedy manner which in most cases puts the life of the victim at stake. Given all these considerations, we foud no reason to interfere with the sentence imposed by the court *a quo* and hence the appeal failed in its entirety.

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MUZENDA J agrees

National Prosecuting Authority, respondent's legal practitioners